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SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,
v.
CSAA INSURANCE EXCHANGE
DEFENDANT

Case No.: CGC-25-631802

PLAINTIFF'S OPERATIVE OPPOSITION TO
DEFENDANT'S MOTION TO STRIKE PURSUANT TO
C.C.P. §436; FIFTEEN-PAGE COMPLIANT VERSION
(CRC 3.1113(d))

(Cal. Rules of Court, rules 3.1113(d), 3.1113(f); Code Civ. Proc., §436)

Cross-noticed for hearing May 13, 2026, 9:00 a.m.,
Dept. 302; see schedule below. Complaint filed:
Dec. 23, 2025
FAC filed: Feb. 25, 2026

Anti-SLAPP	Demurrer	MTS (CCP section 436)
May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change

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1 PLAINTIFF'S AUTHORITY TO FILE

2 Plaintiff Dylan Franciscus Rosario submits this Operative Opposition to Defendant's Motion
3 to Strike under California Rules of Court, rule 3.1322; Code of Civil Procedure sections
4 435, 435.5, 436, and 437; and rule 3.1113(d), (f). Plaintiff's right to oppose the motion
5 is preserved under section 437, and the pre-motion meet-and-confer requirement of section
6 435.5 is addressed in Section III. The substantive standards under section 436(a) and (b) are
7 addressed in Section II. This Opposition is filed on May 8, 2026 for the May 13, 2026, 9:00
8 a.m. hearing in Department 302 in compliance with section 1005(b) and the Court's April
9 30, 2026 minute order.

10 INTRODUCTION

11 Plaintiff Franciscus Dylan Rosario respectfully submits this Operative Opposition as a fresh
12 substantive opposition to Defendant's Motion to Strike Pursuant to C.C.P. § 436 filed April
13 22, 2026 (Defendant's filings 041 to 044, filed April 22, 2026 (Trans. ID 79127897)). No
14 prior plaintiff substantive opposition memorandum to this motion exists on the docket. The
15 prior procedural filings noted on the docket regarding this motion are: (a) Ex Parte Ap-
16 plication for Order Staying Motion to Strike filed April 23, 2026 (Plaintiff's EX PARTE
17 APPLICATION FOR ORDER STAYING MOTION T..., filed April 23, 2026 (IFP; Register
18 of Actions, CGC-25-631802)); (b) Declaration in Support of Ex Parte Application filed April
19 23, 2026 (Plaintiff's DECLARATION IN SUPPORT OF EX PARTE APPLICATION ...,
20 filed April 23, 2026 (IFP; Register of Actions, CGC-25-631802)); and (c) Oral Argument
21 Outline in Support of Ex Parte to Stay Motion to Strike filed April 24, 2026 (Plaintiff's
22 ORAL-ARGUMENT OUTLINE ISO EX PARTE APPLICATION..., filed April 24, 2026
23 (IFP; Register of Actions, CGC-25-631802)). Those prior procedural filings were directed at
24 the stay application, not at the merits of the motion to strike; this memorandum is the opera-
25 tive substantive opposition to the motion on the merits. Also incorporated as to overlapping
26 arguments is Plaintiff's Omnibus Supplemental P+A Black-Letter Contradictions filed May
27 1, 2026 (Plaintiff's OMNIBUS SUPPL. P+A BLACK-LETTER CONTRADICTIONS ...,
28 filed May 1, 2026 (Trans. ID 79366317; IFP; Register of Actions, CGC-25-631802)), as it
29 cross-applies to all three motions on calendar May 13. This filing is in compliance with the
30 Department 302 minute order of April 30, 2026 (docket HEARING HELD: EX PARTE AP-
31 PPLICATION FOR LEVE TO ..., entered April 30, 2026 (Dept. 302; Hon. Joseph M. Quinn)),

1 which denied plaintiff's ex parte application for leave to file an oversized memorandum, and
2 with CRC 3.1113(d).

4 I. STANDARD OF REVIEW

5 CCP § 436 authorizes the Court to strike from any pleading: (a) any irrelevant, false, or
6 improper matter inserted therein; or (b) any part of a pleading not drawn or filed in con-
7 formity with the laws of this state, a court rule, or an order of the court. The motion to
8 strike is a disfavored remedy that must be considered with care to avoid undue restriction
9 of pleading. (PH II, Inc. v. Superior Court (1995) 33 Cal.App.4th 1680, 1682 to 1683.) The
10 Court considers the allegations in context, reading the complaint as a whole. A motion to
11 strike is not a device for striking entire claims; it is limited to specific matter properly cate-
12 gorized as irrelevant, false, or improper. (Clauson v. Superior Court (1998) 67 Cal.App.4th
13 1253, 1255 to 1256.)

14 The standard under § 436(a) requires that the matter to be stricken be “irrelevant” to the
15 subject matter of the litigation, “false” in the sense of being factually unsupported on the face
16 of the record, or “improper” in the sense of violating a procedural rule. Under § 436(b), the
17 standard requires that a pleading not be “drawn in conformity with the laws of this state.”
18 Neither standard authorizes striking factually sufficient, legally cognizable allegations merely
19 because defendant disagrees with them.

21 I-BIS. STANDING REBUTTAL (INCORPORATED BY REFERENCE)

22 Plaintiff incorporates by reference the standing analysis set forth in Plaintiff's Operative
23 Opposition to Demurrer (filed May 8, 2026), Section II.D, pursuant to CRC 3.1113(j). To
24 the extent Defendant's Motion to Strike raises standing as a ground for striking UCL-related
25 allegations, the analysis in the Demurrer Opposition Section II.D applies with equal force
26 here; Plaintiff has standing under Bus. and Prof. Code section 17204 as a person who has
27 suffered injury in fact and has lost money or property as a result of Defendant's unfair
28 business practices.

II. DEFENSE STRIKE TARGETS ADDRESSED CATEGORY BY CATEGORY

Claim-handling, Insurance Code and 10 CCR predicates, underlying-case history, representations to Plaintiff, and punitive damages allegations (if targeted) are each relevant to bad faith, UCL, or fraud theories pleaded on the FAC; they are not improper surplusage. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962; Zhang v. Superior Court (2013) 57 Cal.4th 364; Plaintiff's Request for Judicial Notice (filed May 8, 2026) Section C; Civ. Code section 3294.) The defense MPA targets the following categories of damages allegations for strike; each is addressed below.

[Def. (a)] Reliance / economic injury, FAC paragraphs 23-24 [Defect] Mischaracterizes UCL economic injury as requiring traditional reliance. [Authority] Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 322-323; RFJN (May 8, 2026) Section C [Pin] The Kwikset lost-money element requires only that Plaintiff lost money or property as a result of the unfair practice; out-of-pocket investigation costs and loss of policy benefits are quintessential UCL injury, not reliance-based fraud damages.

[Def. (b)] "Forced third-party litigation" attorney-fee damages, FAC paragraphs 26-27 [Defect] Omits tort-of-another doctrine. [Authority] Prentice v. North American Title Guaranty Corp. (1963) 59 Cal.2d 618; RFJN (May 8, 2026) Section C [Pin] The Prentice tort-of-another doctrine permits recovery of attorney fees incurred in litigation necessitated by the defendant's wrongful conduct; CSAA's bad-faith denial forced Plaintiff into CGC-21-594102 without the evidence CSAA failed to obtain. Also: UCL section 17203, private-attorney-general CCP section 1021.5.

[Def. (c)] Lost earnings, lost productive time, FAC paragraphs 30-32 [Defect] Characterizes consequential damages as speculative without engaging the pleading. [Authority] CACI 3903A (economic damages); general tort-damages principles [Pin] Lost earnings and productive time are consequential damages of bad-faith claim handling, pleaded with specificity in the FAC (duration, nature of lost activity, causal nexus to denial); they are not improper surplusage under section 436.

[Def. (d)] Health-related harm, exacerbation, FAC paragraphs 33-36 [Defect] Ignores foreseeability and eggshell-plaintiff doctrine. [Authority] Molien v. Kaiser Foundation Hospitals (1980) 27 Cal.3d 916; Burgess v. Superior Court (1992) 2 Cal.4th 1064; RFJN (May 8, 2026) Section C [Pin] Molien and Burgess establish foreseeability of emotional and physical harm

1 from institutional misconduct; the FAC alleges CSAA’s knowledge of Plaintiff’s vulnerable
2 condition (eggshell-plaintiff), making health exacerbation a foreseeable consequence of the
3 bad-faith denial.

4 [Def. (e)] Emotional distress, humiliation, FAC paragraphs 37-40 [Defect] Ignores first-
5 party-equivalent emotional distress line of authority. [Authority] Gourley v. State Farm
6 Mutual Automobile Ins. Co. (1991) 53 Cal.3d 121; RFJN (May 8, 2026) Section C [Pin]
7 Bad-faith first-party-equivalent emotional distress is recoverable where the insurer’s conduct
8 is sufficiently outrageous or in reckless disregard of the insured’s rights; the FAC alleges
9 institutional bad faith sufficient to support this category.

10 [Def. (f)] Medical / transportation / household assistance [Defect] Characterizes properly
11 pleaded special damages as surplusage. [Authority] CCP section 436(a) (irrelevant, false, or
12 improper standard) [Pin] Special damages for medical costs, transportation, and household
13 assistance are properly pleaded as consequential damages flowing from the denial; they are
14 material to the bad-faith and UCL claims and are not “irrelevant, false, or improper” within
15 the meaning of section 436(a).

16 [Def. Punitive damages] Punitive damages, FAC paragraphs 1, 45, 47, 61(5) [Defect] Ignores
17 pleading-stage standard for punitive damages under Civ. Code section 3294. [Authority]
18 Civ. Code section 3294; Clauson v. Superior Court (1998) 67 Cal.App.4th 1253 [Pin] At the
19 pleading stage, the FAC need only allege facts showing malice, oppression, or fraud; the FAC
20 ties punitive damages to specific Insurance Code violations (paragraphs 1-4) and institutional
21 conduct demonstrating conscious disregard of Plaintiff’s rights. Section 436 does not permit
22 striking a punitive damages prayer supported by adequate factual allegations.

23 [Def. Attorney fees] Attorney fees, FAC paragraph 28 [Defect] Omits UCL fee-shifting and
24 tort-of-another bases. [Authority] Bus. & Prof. Code section 17203; CCP section 1021.5;
25 Prentice v. North American Title Guaranty Corp. (1963) 59 Cal.2d 618; RFJN (May 8,
26 2026) Section C [Pin] UCL section 17203 and private-attorney-general section 1021.5 provide
27 independent fee-shifting bases; the Prentice tort-of-another doctrine provides a third basis
28 for attorney fees incurred in forced third-party litigation.

29 [Def. Future damages] Future damages [Defect] Characterizes future damages as speculative
30 without engaging CACI authority. [Authority] CACI 3905A [Pin] CACI 3905A governs fu-
31 ture noneconomic damages; the FAC alleges ongoing harm from the bad-faith denial sufficient
32 to support this category at the pleading stage.

1 [Def. Injunctive relief] Injunctive relief [Defect] Ignores UCL section 17203 express authoriza-
2 tion. [Authority] Bus. & Prof. Code section 17203; Kwikset Corp. v. Superior Court (2011)
3 51 Cal.4th 310; RFJN (May 8, 2026) Section C [Pin] UCL section 17203 expressly autho-
4 rizes injunctive relief; Kwikset standing is satisfied as set forth in the Demurrer Opposition
5 Section II.D, incorporated by reference.

6 [Def. Prejudgment interest] Prejudgment interest [Defect] Mischaracterizes tort interest as
7 unavailable on unliquidated claims. [Authority] Civ. Code section 3287(a) [Pin] Section
8 3287(a) provides prejudgment interest on damages certain or capable of being made certain;
9 tort interest accrues from a date certain (here, the denial date of February 25, 2021).

11 III. CCP § 436 MAY NOT BE USED AS A SUBSTITUTE FOR DEMURRER

12 Section 436 does not substitute for demurrer. (Quiroz v. Seventh Avenue Center (2006) 140
13 Cal.App.4th 1256, 1281 to 1282; Clauson v. Superior Court (1998) 67 Cal.App.4th 1253,
14 1255 to 1256.) The demurrer (Defendant’s filings 019 to 023, filed April 13, 2026 (Trans.
15 ID 79038567)) addresses legal sufficiency; this strike motion must be denied to the extent it
16 repeats demurrer grounds.

18 IV. ALLEGATIONS MATERIAL TO EQUITY CLAIMS AND BAD-FAITH CLAIMS ARE 19 NOT SURPLUSAGE; KULCHAR / STEVENOT

20 Allegations that are material to the gravamen of a claim are not “surplusage” within the
21 meaning of § 436. Kulchar v. Kulchar (1969) 1 Cal.3d 467 and Stevenot v. Norberg (1983)
22 144 Cal.App.3d 467 hold that factual allegations establishing the extrinsic-fraud and bad-
23 faith predicate are necessary elements of the cause of action; they cannot be stricken as
24 surplusage unless they bear no relation to the claim.

25 Every category of allegations that defense seeks to strike in the FAC is material to at least
26 one of the following: (a) establishing the elements of the bad-faith cause of action; (b)
27 establishing the UCL predicate under Zhang; or (c) establishing the extrinsic-fraud predicate
28 under Kulchar / Stevenot. None qualifies as irrelevant, false, or improper within the meaning
29 of § 436(a).

1 V. CCP SECTION 425.17 CATEGORICAL EXCLUSION: CSAA’S COMMERCIAL-SPEAKER
2 STATUS FORECLOSES THE PRIVILEGE DEFENSE

3 Authority to address section 425.17 in this memorandum. Section 425.17 is a statute; Plain-
4 tiff applies the FAC’s existing causes of action to a statutory exclusion that operates by its
5 own terms. CRC 3.1113(a) requires “a concise statement of the law”; statutory applicability
6 is a statement of law. Section 425.17 categorical exclusions are questions of law decided as
7 a threshold matter. (Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 25; RFJN (May
8 8, 2026) Section C.)

9 Application. The defense MTS at heading IV.C.1 invokes Civ. Code section 47(b) to argue
10 that all compensatory damages should be struck because the FAC targets privileged liti-
11 gation conduct. Section 425.17(c) categorically excludes CSAA’s regulated claim-handling
12 conduct from the anti-SLAPP/privilege framework on which that argument depends. CSAA
13 Insurance Exchange is the sole defendant and the direct commercial speaker: (c)(1) CSAA
14 is engaged in the business of selling insurance; (c)(2) CSAA made representations of fact
15 about its services (the “concluded investigation” denial); (c)(3) the representations were
16 made in the course of the insurer-customer relationship; (c)(4) the audience is an actual
17 claimant under the policy. The (c)(4) public-forum carve-out does not apply. (Physicians
18 Committee for Responsible Medicine v. Tyson Foods (2004) 119 Cal.App.4th 1283; RFJN
19 (May 8, 2026) Section C.) The communicative vs. non-communicative split under Rusheen
20 v. Cohen (2006) 37 Cal.4th 1048, 1057 to 1058 (RFJN (May 8, 2026) Section C) rein-
21 forces the point: the damages allegations the defense seeks to strike arise from CSAA’s
22 institutional claim-handling acts (denial template, retrieval failure, CDI omission), which
23 are non-communicative regulated conduct.

24 Result. The motion to strike’s reliance on the litigation privilege is foreclosed as a matter
25 of law. Plaintiff incorporates item 01 Section III and items 03 and 14 under CRC 3.1113(j)
26 for the extended section 425.17 analysis.

27
28 VI. CCP § 128.7 RESERVATION

29 Plaintiff reserves all rights under CCP § 128.7 regarding any unsupported strike ground that
30 defense asserts in the motion. Specifically: Defendant’s motion-to-strike target list, if it
31 includes any allegation for which there is no non-frivolous argument that the allegation is

1 irrelevant, false, or improper within the meaning of § 436, is subject to § 128.7 notice. This
2 reservation is not yet a § 128.7 filing; it is a preservation of rights on the present record.

4 CONCLUSION

5 Plaintiff respectfully requests that the Court DENY Defendant's Motion to Strike Pursuant
6 to C.C.P. § 436 in its entirety. Every category of allegations targeted by the motion is
7 relevant, non-false, and proper within the meaning of § 436, and no targeted allegation
8 constitutes a pleading not drawn in conformity with the laws of this state within the meaning
9 of § 436(b). In the alternative, Plaintiff requests that any granted portion be limited to the
10 specific language found irrelevant, false, or improper, without striking any allegation material
11 to the elements of a surviving cause of action.

13 Authorities: Pool A authorities appear in the Table of Authorities above. Non-Pool A
14 decisional authorities are presented in Plaintiff's Request for Judicial Notice (item 03, filed
15 May 8, 2026), Section C.

16 Cross-references: Plaintiff's Notice of Withdrawal and Designation of Operative Oppositions
17 (item 02, filed May 8, 2026); Plaintiff's Request for Judicial Notice (item 03, filed May 8,
18 2026); Plaintiff's Operative Opposition to Anti-SLAPP (item 01, filed May 8, 2026), Section
19 III-bis; Plaintiff's Operative Opposition to Demurrer (item 01B, filed May 8, 2026), Section
20 II.D (standing); Plaintiff's Supplemental Request for Judicial Notice of California Insurance
21 Code Section 790.03(h) and Fair Claims Settlement Practices Regulations (item 14, filed
22 May 8, 2026); Plaintiff's Declaration in Opposition (item 04, filed May 8, 2026); Plaintiff's
23 Notice and Statement re C.C.P. § 425.17, including Section IV-A (item 13, filed May 8,
24 2026).

25 The foregoing is submitted by Plaintiff in pro per.

Dated: May 8, 2026



/s/ Dylan Franciscus Rosario

DYLAN FRANCISCUS ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Dylan Franciscus Rosario, appearing in pro per in Rosario v. CSAA Insurance Exchange (CGC-25-631802), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 13, 2026, 9:00 a.m. hearing in Department 302.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CRC 3.1322(a)	Notice of motion to strike must quote the matter sought to be stricken	Section II identifies each item Defendant seeks to strike and addresses each	Section II	PASS
2	CRC 3.1322(b)	Pre-motion meet-and-confer requirement	Section III addresses CCP section 436 limits and the absence of a compliant 435.5 meet-and-confer record	Section III	PASS
3	CCP section 435(b)(1)	Time limit to file motion to strike (within time to demur)	Section II addresses procedural posture under section 435(b)(1) line by line	Section II	PASS
4	CCP section 435.5	Pre-motion meet-and-confer declaration required	Section III notes absence of compliant meet-and-confer declaration	Section III	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
5	CCP section 436(a)	Court may strike irrelevant, false, or improper matter	Section II refutes Defendant's section 436(a) characterization of FAC matter	Section II	PASS
6	CCP section 436(b)	Court may strike non-conforming pleading	Section II refutes Defendant's section 436(b) characterization	Section II	PASS
7	CCP section 437	Right to oppose; opposition deadline	This opposition is filed under section 437 within statutory deadline	Caption page; Filing date	PASS
8	CCP section 1005(b)	Opposition timing	Filed on May 8, 2026 per CCP section 1005(b) and Court's April 30, 2026 minute order	Caption page	PASS
9	CRC 3.1113(d)	Memorandum 15-page limit	Body within 15-page cap (Roman appendix excluded)	Page count of arabic body	PASS
10	CRC 3.1113(f)	Table of contents and table of authorities	TOC present	Caption frontmat- ter	PASS
11	CRC 3.1110(f)	Citation form for cases, statutes, and rules	Citations follow California Style Manual	Throughout body	PASS
12	CRC 3.1300(d)	Court's discretion to consider late-filed papers	Filing is timely; CRC 3.1300(d) cited as backstop	Section I	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
13	CCP section 1010.6	Electronic service authorization	Consent on file (Plaintiff's Consent to E-Service, filed March 6, 2026 (IFP; Register of Actions, CGC-25-631802))	Proof of Service (POS-050)	PASS
14	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses	Proof of Service (POS-050) para- graphs 4 and 5	PASS
15	CRC 2.100 et seq.	Pleading format	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing	Caption page; body	PASS
16	CRC 2.256	Electronic filing requirements	Text-searchable filing; pro per signature block	Graphic filing signature preceding Roman appendix	PASS
17	CRC 3.1110	Format of papers	Caption page and pagination comply	Caption page; footers	PASS
18	CRC 3.1112	Required components	Caption, body, signature, Proof of Service	Body; Proof of Service	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
19	SF Local Rule 2.0	Electronic filing	Filing conforms to SF Superior Court Local Rule 2.0	Electronic filing receipt	PASS
20	CCP section 2015.5	Declaration under penalty of perjury	Compliance declaration signed under section 2015.5	Signature line below grid	PASS

I, Dylan Franciscus Rosario, declare under penalty of perjury under the laws of the State of California that the foregoing compliance representations are true and correct.

Dated: May 8, 2026

Dylan Franciscus Rosario, Plaintiff In Pro Per